NOTIFICATION OF MINISTRY OF COMMERCE

on Measures for the Purpose of Control of Item in Relation to the Proliferation of Weapons of Mass Destruction and Measures Relating to Item with Reasonable Doubt Concerning a Connection between an End-Use or an End-User and the Proliferation of Weapons of Mass Destruction

B.E. 2564 (2021)

Whereas it is deemed appropriate to prescribe the measures for the purpose of control of item in relation to the proliferation of weapons of mass destruction and the measures relating to item with reasonable doubt concerning a connection between an end-use or an end-user and the proliferation of weapons of mass destruction. By virtue of the provisions of Section 12, paragraph one (3), of Control of Item in Relation to the Proliferation of Weapons of Mass Destruction Act B.E. 2562 (2019), Minister of Commerce, by advice of the Control of Item in Relation to the Proliferation of Weapons of Mass Destruction Committee, hereby issues this Notification, as follows:

Clause 1 In this Notification:

"Control measures" refers to such measures which prohibit any export, re-export, transshipment, transit and technology and software transfer in respect of item in relation to the proliferation of weapons of mass destruction and item with reasonable doubt concerning a connection between an end-use or an end-user and the proliferation of weapons of mass destruction.

"Item with reasonable doubt" refers to dual-use item under the responsibility of Department of Foreign Trade per List 1, and harmonized system code (HS Code) per List 2 attached hereto, which Department of Foreign Trade has or obtains information, in writing, on risks relating to the proliferation of weapons of mass destruction, from any state authority, in the form as designated and announced by Director-General.

"Technology and software transfer" refers to such transfer of dual-use item in the form of knowledge, skills, specific data or information necessary for development, manufacture or use of dual-use item by any person, including provision of technical assistance, training or consultation in research collaboration in any educational institute or research institute, and presentation of any research documents in a conference or seminar, and technology and

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software transfer via electronic mail, telephone, facsimile, software, the internet, electronic media or other media of tangible form.

"Person associated with export, re-export, transshipment, transit or technology and software transfer" refers to any person whom Department of Foreign Trade has or obtains information on risks of a connection with any activity in support of export, re-export, transshipment, transit or technology and software transfer in respect of item with reasonable doubt, whether as buyer, seller, exporter, re-exporter, transhipper, transit importer, person conducting technology or software transfer or carrier.

"State authority" refers to such state authority whose head acts as a member of the Control of Item in Relation to the Proliferation of Weapons of Mass Destruction Committee, and includes Special Branch Bureau of Royal Thai Police, Armed Forces Security Center of Royal Thai Armed Forces, and National Science and Technology Development Agency of Ministry of Higher Education, Science, Research and Innovation.

"e-TCWMD system" refers to the electronic data system established by Department of Foreign Trade in the implementation of the control of item in relation to the proliferation of weapons of mass destruction law.

"Director-General" refers to Director-General of Department of Foreign Trade.

Clause 2 Any state authority that has information on item with reasonable doubt to be handled for export, re-export, transshipment, transit or technology and software transfer, with the risks of the proliferation of weapons of mass destruction, or for an end-use or an end-user relating to the proliferation of weapons of mass destruction, may give notice thereof Director-General for the purpose of review of such information on risks of the proliferation of weapons of mass destruction. Director-General shall accept such matter for review, provided that such notice shall at least include the following information:

(1) Name and address of at least one person associated with export, re-export, transshipment, transit or technology and software transfer, which can be contacted in Thailand, and documents and evidence showing the status of a person associated with export, re-export, transshipment, transit or technology and software transfer;

(2) Code of dual-use item per List 1 and HS Code per List 2 attached hereto in case of dual-use item, or HS Code per List 2 attached hereto in case of item within the scope of dual-use items , and any other specific information which can be used to identify such item.

In case of dual-use item in the form of technology and software, only the code of dual-use item per List 1 attached hereto and the code of dual-use item in association with

such technology and software, and if such item is contained in a media of tangible form, the HS Code of such media must be indicated;

(3) Name of the person associated with export, re-export, transshipment, transit or technology and software transfer or the recipient thereof in relation to the proliferation of weapons of mass destruction per the United Nations Security Council Consolidated List, or name of the person or group of persons in relation to the proliferation of weapons of mass destruction based on such information obtained from the authorities in charge of the implementation under the United Nations Security Council Resolution 1540;

(4) Name and address of the recipient of the item;

(5) Route of shipment and address of the destination of the shipment of such item.

Clause 3 When Director-General has or obtains information on risks under Clause 2, Director-General shall review the following risks of the proliferation of weapons of mass destruction, which must be completed without delay:

(1) Such export, re-export, transshipment, transit or technology and software transfer involves dual-use item per List 1 or item within a scope of dual-use item per List 2.

(2) The person associated with export, re-export, transshipment, transit or technology and software transfer is on the United Nations Security Council Consolidated List or is a person or group of persons relating to the proliferation of weapons of mass destruction.

(3) The person associated with export, re-export, transshipment, transit or technology and software transfer fails to submit the documents and evidence from the verification process of the regulated activity under (1) which is compatible with any of the topics of Department of Foreign Trade's criteria for certification of internal compliance program under Clause 7, which can demonstrate that there are no such risks, as summonsed in writing by Director-General to submit such documents and evidence in support of the consideration.

Clause 4 In the event where Director-General's review finds any risks of the proliferation of weapons of mass destruction under Clause 3, such item with reasonable doubt shall be subject to such control measures.

Director-General shall issue a notification letter of enforcement of control measures, together with information on risks, to the person associated with export, re-export, transshipment, transit or technology and software transfer, as the case may be, depending on the information on risks obtained. Such measures shall be effective as from the date of receipt of such notification letter until the enforcement of such measures shall be cancelled in writing by Director-General. The person who receives such notification letter shall be entitled to

appeal in writing to Minister of Commerce within 30 days from the date of receipt of such notification letter.

Director-General shall also send a notification letter of enforcement of control measures, together with information on risks and name of the person associated with export, re-export, transshipment, transit or technology and software transfer, under paragraph two, to Customs Department. In the event of the enforcement of such measures to technology and software, Customs Department shall be informed only in respect of any technology and software transfer via a media of tangible form.

Clause 5 Director-General may consider reviewing the enforcement of control measures in the event where the person associated with export, re-export, transshipment, transit or technology and software transfer, who has received the notification under Clause 4, paragraph two, files an application and presents such information or documents and evidence that the risks of the proliferation of weapons of mass destruction have changed from the notification or that there are no such risks under the notification.

Director-General shall consider such application by reviewing the information on risks of the proliferation of weapons of mass destruction, which must be completed, and notify the results of such review to the applicant and Customs Department without delay. In the event of technology and software, Customs Department shall be informed only in respect of any technology and software transfer via a media of tangible form.

In the event where Director-General deems it appropriate to cancel the enforcement of such measures, whether in whole or in part, and in the event where Director-General deems it appropriate to enforce new measures, the notification letter of cancellation of enforcement of such measures, and the enforcement of new measures shall be sent to the person associated with export, re-export, transshipment, transit or technology and software transfer, who has received the notification under Clause 4, paragraph two, for information. The effects of such measures shall be as specified in Clause 4, paragraph two, *mutatis mutandis*.

The applicant who has received the results of the review and the person associated with export, re-export, transshipment, transit or technology and software transfer, who disagrees with the results of the review, shall be entitled to appeal in writing to Minister of Commerce within 30 days from the date of receipt of such notification letter.

Clause 6 The implementation under this Notification may be conducted electronically or via the e-TCWMD system as designated by Director-General.

Clause 7 The criteria for certification of internal compliance program under Clause 3 (3) shall comprise the following topics:

(1) Accountability and authorization management system;

(2) Verification of end-use and end-user system;

(3) Training system;

(4) Document storage measure system;

(5) Audit and corrective system;

(6) Reporting system.

The details of the respective topics shall be described in Notification of Department of Foreign Trade on Criteria for Certification of Internal Compliance Program for Control of Item in Relation to the Proliferation of Weapons of Mass Destruction B.E. 2564 (2021), or any amendment or enactment thereof under the topics of such criteria in paragraph one.

Clause 8 Should there be any problems in practice under this Notification, Director-General shall consider making a decision and resolve such problems as necessary and appropriate, which shall be deemed final.

This shall come into force upon the lapse of sixty days from the date of its publication in the Government Gazette.

Notified on the 11th day of October B.E. 2564 (2021).

Jurin Laksanawisit

Minister of Commerce